

GAHC040008352024



THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)
(ITANAGAR BENCH)

Case No. : IA(C)/305/2025

Kompu Dolo
Age: 62
Occupation :
Address: Son of Late Tagung Rebe
resident of Village Rebe
PO and PS Chayang Tajo
East Kameng District
Arunachal Pradesh 790102

VERSUS

Hayeng Mangfi
Age: 48
Occupation :
Address: Son of Late Tangu Mangfi
resident of Nari Camp Village
PO Sawa
PS Chayang Tajo
East Kameng District
Arunachal Pradesh 790102

Advocate for : Takar Bagang
Advocate for : S K Deori appearing for Hayeng Mangfi: Advocate appearing for
respectively.

**BEFORE
HONOURABLE MR. JUSTICE BUDI HABUNG**

ORDER

Date : 03.12.2025

Heard Mr. M. G. Singh, learned counsel for the applicant/election petitioner. Also heard Mr. M. Opo, learned counsel for the sole respondent.

2. By filing this interlocutory application, the applicant/election petitioner seeks inclusion of Issue No. 4 from the draft issues submitted by the applicant/election petitioner. Issue No. 4 reads as under:"

"4. Whether the respondent No. 1 did not correctly disclose the trade license of M/s. H.M. Traders being valid as on 24.03.2024 in Form 26 affidavit filed by him along with his nomination paper for the 9-Chayang Tajo (ST) Assembly Constituency in the 11th Arunachal Pradesh Legislative Assembly Election, 2024 and whether such non-disclosure would be corrupt practice of undue influence and the same materially affect the election of the respondent No. 1 or not ?"

3. It is submitted by the learned counsel for the applicant/election petitioner that in the Issues framed by this Hon'ble Court on 28.10.2025, the above Issue No. 4 from the draft issues submitted by the applicant/election petitioner has not been included.

4. It is further submitted that the proposed Issue No. 4 requires consideration, as the said issue goes to the root of the controversy and is essential for the proper adjudication of the election petition, and omission of the same would cause prejudice to the applicant/election petitioner.

5. The learned counsel for the respondent, while raising objection submits that the matter sought to be included is sufficiently covered under the Issue No.3 already framed by this Court.

6. Mr. Singh, learned counsel for the applicant/election petitioner, fairly submits that although Issue No. 3 is almost covered. However, a specific mention of "not correctly disclosing the trade licence of M/s. H.M. Traders being valid as on 24.03.2024" would be necessary. Therefore, he prays the above proposed sentence may be incorporated in Issue No.3. To that extent, the learned counsel for the respondent has no objection.

7. In view of the above, and as agreed upon by the parties, the prayer of the applicant/election petitioner for inclusion of the above sentence in Issue No. 3 is allowed.

8. Issue No. 3 shall now be read as follows:

"Whether the respondent–elected candidate's failure to disclose material information (such as criminal antecedents/immovable assets and non-disclosure of the trade licence of M/s. H.M. Traders being valid as on 24.03.2024) in Form 26 amounts to a violation of the Representation of the People Act, 1951, particularly Section 33A, and if so, whether the non-disclosure or misrepresentation of facts in Form 26 has materially affected the election results and vitiates the respondent's nomination?"

9. With the above, the issues framed by this Court in the election petition on 28.10.2025 shall be re-numbered and shall read as follows:

1. Whether there is any cause of action for this Election Petition?
2. Whether the respondent-elected candidate has furnished incomplete, false or misleading information in the affidavit filed in Form 26 as per Rule 4A of the Conduct of Election Rules, 1961, read with section 33A of the Representation of the People Act, 1951?
3. Whether the respondent elected candidate's failure to disclose material information (such as criminal antecedents/immovable assets and non-disclosure of the trade license of M/s. H.M. Traders being valid as on 24.03.2024) in Form 26 amounts to a violation of the Representation of the People Act, 1951, particularly Sections 33A and if so, whether the non-disclosure or misrepresentation of facts in Form 26 has materially affected the election results and vitiates the respondent's nomination?
4. Whether the Returning Officer failed in their duty to properly scrutinise the affidavit submitted by the respondent-candidate under section 36 of the Representation of the People Act, 1951?
5. Whether there has been substantial compliance with the provisions of Section 33A of the Representation of the People Act, 1951 and Rule 4A of the Conduct of Election Rules, 1961, in filling up the affidavit in Form 26 by the elected candidate?
6. Whether the election of the respondent is liable to be declared void under section 100(1)(B) of the Representation of the People Act, 1951, on the ground of improper acceptance of nomination ?
7. Whether the Election petition lacks material facts and particulars as

required under section 83 of the Representation of the People Act, 1951, to make out a cause of action of commission of corrupt practice of undue influence.

8. Whether the mandate under section 77 Representation of the People Act, 1951, to open a bank account in the name of the candidate or his election agent to keep a separate and correct account of all expenditure in connection with the election, if not adhered to, can vitiate the election of the elected candidate?

9. Whether the petitioner is entitled to relief as prayed for, including setting aside the election or any other appropriate relief ?

10. The I.A. stands allowed to the extent indicated above and is accordingly disposed of.

JUDGE

Comparing Assistant